EMPATHIC ARBITER



Justice Sunita Agarwal, *57*
Chief Justice, Gujarat High Court

ACCOMPLISHMENT
Has demonstrated how to strike a balance between legal nuances and social realities

WHEN JUSTICE SUNITA AGARWAL TOOK OATH as the Chief Justice of the Gujarat High Court in July 2023, she became the only woman judge to head any of the 25 high courts in the country. Also, only the second woman to be elevated as the chief justice in Gujarat, the significance of her feat can be understood from this stark fact—just 13 per cent of all high court judges in India are women.

Justice Agarwal, though, is hopeful that many more from the next generation will break this glass ceiling. In her farewell speech at the Allahabad High Court before moving to Gujarat, she told young women legal professionals not to let anyone tell them what they can or cannot achieve. Exhorting the young women to be tenacious, confident, and not yield to external influences, she said, "There will be many options presented to you. If you choose wisely, you will succeed greatly."

Born on April 30, 1966, at Faizabad in Uttar Pradesh, Justice Agarwal graduated in science from Lucknow University in 1986 before earning a law degree from Awadh University. After practising law for two decades, she was finally elevated as an additional judge of the Allahabad High Court in November 2011 and became a permanent judge in August 2013.

In her illustrious legal career, Justice Agarwal has always made choices that balanced legal nuances with social realities. In 2020, when the Uttar Pradesh police arrested some individuals for distributing food packets in violation of Covid-19 protocols, Justice Agarwal ordered their release. Her reasoning: the administration should first create more awareness about protocols.

Justice Agarwal has also delivered several significant rulings in constitutional law. For instance, in 2020, she was part of a three-judge bench that established that a high court could exercise its powers over persons living outside its jurisdiction if the case relates to a cause of action that took place within its jurisdiction. The same year, she was part of a five-judge bench that ruled that a person seeking anticipatory bail could directly approach the high court, bypassing ordinary criminal courts, in special circumstances.

The daughter of a lawyer and married to one as well, Justice Agarwal has two children. While daughter Aishwarya is also a lawyer, son Abhinav is a law student, both set to carry on this rich legacy. ■

–Kaushik Deka

A MOTIVATION

"Even the sky is not the limit. If I can do it, you can too..."

–to young female legal professionals during her farewell speech at the Allahabad High Court

UPHOLDING RIGHTS

In Feb. 2021, Justice Agarwal ordered the reinstatement of a gay staff member of the Home Guards in UP whose appointment had been cancelled after a video revealing his sexual orientation went viral. She noted that it violated the Supreme Court's 2018 verdict that decriminalised homosexuality